

For the purposes of this paragraph the term "insoluble" shall imply insolubility in hydrochloric acid, as determined by a prescribed method; the term "natural association" shall be construed as applying to average commercial samples of the feeding material with which it may be claimed that a particular mineral ingredient is associated.

5TH SCH.
—cont.

CHAPTER 46.

An Act to make further provision with respect to
the University of London.

[15th December 1926.]

WHEREAS a Departmental Committee appointed by a Minute of the Board of Education dated the eighth day of October, nineteen hundred and twenty-four, to consider the Final Report of the Royal Commission on University Education in London dated the twenty-seventh day of March, nineteen hundred and thirteen, and, having regard to the present circumstances and after consultation with the persons and bodies concerned, to indicate what are the principal changes now most needed in the existing constitution of the University of London and on what basis a Statutory Commission should be set up to frame new statutes for the University, has in its Report (in this Act referred to as "the Report of the Committee") made recommendations with respect to the matters aforesaid and in particular has recommended that Statutory Commissioners should be appointed to make new statutes for the University in accordance with the recommendations in the said Report:

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) There shall be a body of Commissioners to be styled "The University of London Commissioners," Appoint-
ment of

Commis-
sioners.

consisting, in the first instance, of the following persons, namely :—

The Hon. Mr. Justice Tomlin, Master of Arts,
Bachelor of Civil Law ;
Sir Lewis Amherst Selby-Bigge, Bart., K.C.B.,
Master of Arts ;
Sir Cyril Stephen Cobb, K.B.E., M.V.O., Master of
Arts, Bachelor of Civil Law, Member of Parlia-
ment ;
Sir Josiah Charles Stamp, G.B.E., Doctor of Science,
Fellow of the Royal Statistical Society ;
Sir Edwin Cooper Perry, Doctor of Medicine, Fellow
of the Royal College of Physicians ;
Alexander Dunlop Lindsay, Esquire, C.B.E., Master
of Arts, Honorary Doctor of Laws, Master of
Balliol College, Oxford ;
Bertha Surtees Phillpotts, O.B.E., Doctor of Letters ;
and
Thomas Percy Nunn, Esquire, Doctor of Science,
Professor of Education in the University of
London.

(2) If and whenever a vacancy occurs among the Commissioners, His Majesty may by Order in Council appoint a person to fill the vacancy, but every such Order shall be laid before both Houses of Parliament, within ten days after it is made if Parliament be then sitting, or, if not, then within ten days after the next sitting of Parliament.

(3) The Commissioners may, with the consent of the Treasury as to number, employ such persons as they may think necessary for the execution of their duties under this Act.

Expenses of
Commission.

2. There shall be paid to any person employed by the Commissioners such remuneration as the Treasury may determine, and all expenses incurred by the Commissioners in the execution of this Act (including the remuneration aforesaid) shall, up to an amount approved by the Treasury, be paid out of moneys provided by Parliament.

Duration
and pro-
ceedings of
Commis-
sioners.

3.—(1) Subject as hereinafter provided, the powers of the Commissioners shall continue in force until the end of the year nineteen hundred and twenty-seven and no longer :

Provided that His Majesty in Council may, on the application of the Commissioners, continue their powers for such further period as His Majesty may think fit, but not beyond the end of the year nineteen hundred and twenty-eight.

(2) The Commissioner first named in this Act shall be the chairman of the Commissioners, and in case of his ceasing from any cause to be a Commissioner or of his absence from any meeting, the Commissioners present at each meeting shall choose a chairman.

(3) The powers of the Commissioners may be exercised at a meeting at which three or more Commissioners are present.

(4) In case of an equality of votes on a question at a meeting, the chairman of the meeting shall have a second or casting vote in respect of that question.

(5) The Commissioners shall have a common seal which shall be judicially noticed.

(6) Any act of the Commissioners shall not be invalid by reason only of any vacancy in their number, but if at any time and so long as the number of persons acting as Commissioners is less than four, the Commissioners shall discontinue the exercise of their powers.

4.—(1) Subject to the provisions of this Act, the Commissioners shall make statutes for the University of London (in this Act referred to as “the University”), in general accordance with the recommendations contained in the Report of the Committee, subject to any modifications which may appear to them to be expedient, and, so far as may be necessary for giving effect to any of the said recommendations, the Commissioners may, subject as hereinafter provided, make statutes for any school of the University, or for any other college, school, or institution for the purpose of enabling it to become a school of the University :

Powers and
duties of
Commis-
sioners.

Provided that no statute, not being a statute for the University, shall be made under this Act for any school of the University, or for any other college, school, or institution, except with the consent of the governing body thereof, and, in the case of a statute altering any trust, with the consent of the trustees or governing body of the trust.

(2) The Commissioners shall, before adopting any final resolution for the making of a statute under this Act, take such steps as are in their opinion best adapted for facilitating the making of representations with respect to the proposed statute, and shall, in particular, consider any representations made to them by or on behalf of the Senate or Convocation or any fifty graduates of the University, or by or on behalf of any other bodies or persons appearing to the Commissioners to be directly affected by the proposed statute.

(3) If representations with respect to any proposed statutes are made to the Commissioners by the governing body of any college, school or institution which is at the commencement of this Act a school of the University in the Faculty of Theology, objecting to any alteration which would be necessitated by the making of the statute in the constitution of the college, school or institution, or in respect of the appointment of teachers therein or the financial administration thereof, the proposed statute shall, unless the objection be withdrawn, be modified so as not to necessitate the alteration objected to.

(4) The Commissioners shall have power to take such evidence as they may think necessary for the exercise of their powers and for the performance of their duties under this Act.

Approval
and effect of
statutes.

5.—(1) No statute or part of a statute made under this Act shall have effect until it has been approved by His Majesty in Council, but every statute or part of a statute so approved shall, subject to the provisions of this Act, have effect notwithstanding anything in any Act of Parliament, charter, deed, or other instrument whatsoever.

(2) The provisions contained in the Schedule to this Act shall have effect with respect to the submission of statutes made under this Act for the approval of His Majesty in Council and with respect to statutes so submitted.

Power to
amend and
supplement
statutes.

6.—(1) Statutes made by the Commissioners shall make provision enabling the University to alter or supplement after the cesser of the powers of the Commissioners any statutes made by them or by any other authority, except statutes made under this section.

(2) The provisions contained in this Act with respect to the making of statutes by the Commissioners and to the proceedings to be taken after the making thereof in connection with statutes made by the Commissioners, and, subject as may be provided by any statutes made by the Commissioners, to the effect thereof after approval shall, with the necessary substitutions, apply to the making of statutes by the University and to the proceedings to be taken in connection with statutes made by the University, and, subject as aforesaid, to the effect of, such statutes.

7.—(1) No statute made under this Act shall alter the incorporation in the University of the colleges known respectively as University of London, University College, and University of London, King's College, or the vesting, disposition, or management of any emoluments, endowments, trusts, foundations, gifts, offices, or institutions in or connected with either of those colleges so far as those matters are or have been regulated respectively by or under the University College, London (Transfer) Act, 1905, or the King's College, London (Transfer) Act, 1908, and no such statute shall provide for the incorporation in the University of any school of the University or other college, school, or institution; but if at any time it is agreed between the University and the governing body of either of the first mentioned colleges that it is expedient that as respects that college any such alteration as aforesaid should be made, or if at any time it is agreed between the University and the governing body of any school of the University or other college, school or institution that it is expedient that provision should be made for the incorporation thereof in the University, then, in any such case, it shall be lawful for the University and the governing body jointly to make application to His Majesty in Council for a charter in that behalf, and any charter which His Majesty in Council is pleased to grant upon any such application shall have full effect notwithstanding anything in any Act of Parliament or in any previous charter, deed, or other instrument whatsoever.

Provisions
as to incor-
poration of
colleges and
schools in
the Uni-
versity.

5 Edw. 7.
c. xci.
8 Edw. 7.
c. xxxix.

(2) The provisions of the College Charter Act, 1871, shall apply with respect to any application for a charter made under this section as if it were an application for a charter for the foundation of a college or university.

34 & 35
Vict. c. 63.

(3) Notwithstanding anything in the foregoing provisions of this section, statutes made under this Act may make such modifications in the said University College, London (Transfer) Act, 1905, and King's College, London (Transfer) Act, 1908, as may be necessary for adapting those Acts to any change made under this Act in the constitution or management of the University.

Provisions
as to
appoint-
ment by
Crown of
members of
a council of
the Univer-
sity.

8. Whenever there occurs among the members of a council of the University a vacancy which is in accordance with statutes made under this Act to be filled by a person appointed by the Crown, the vacancy shall be filled by a person appointed by His Majesty in Council, and before any draft Order in Council is submitted to His Majesty for that purpose sufficient opportunity to submit recommendations in regard to the appointment shall be given to such persons or bodies representative of the University as may be designated in that behalf by statutes made under this Act.

Short title
and inter-
pretation.

9.—(1) This Act may be cited as the University of London Act, 1926.

(2) In this Act the expression "governing body" means in relation to the colleges known as University of London, University College, and University of London, King's College, the College Committee and the Delegacy of those colleges respectively.

Section 5.

SCHEDULE.

PROVISIONS WITH RESPECT TO THE SUBMISSION OF STATUTES FOR THE APPROVAL OF HIS MAJESTY IN COUNCIL AND WITH RESPECT TO STATUTES SO SUBMITTED.

1. The Commissioners within one month after making a statute shall cause it to be submitted to His Majesty in Council, and notice of it having been so submitted and of the place where copies of it can be obtained shall be published in the London Gazette (in this Act referred to as the gazetting of a statute), and if after a statute has been so gazetted the powers of the

Commissioners under this Act cease to be in force, the cesser of the powers of the Commissioners shall not affect the subsequent proceedings under this Act respecting the statute.

2. At any time within eight weeks (exclusive of any University vacation) after the gazetting of a statute the Senate or Convocation of the University, or any other person or body directly affected by the statute may petition His Majesty in Council for disallowance of the statute or of any part thereof.

3.—(1) It shall be lawful for His Majesty in Council to refer any statute, petitioned against under this Act to a committee of the Privy Council with a direction that the committee hear the petitioner personally or by counsel and report specially to His Majesty in Council on the matter of the petition.

(2) The costs of any such petition as aforesaid may be regulated by the committee to which the petition is referred, and any order of the committee respecting costs shall be enforceable as if it were an order made in proceedings in the Supreme Court.

4. Subject as hereinafter provided, every statute made under this Act shall be laid before both Houses of Parliament as soon as may be after the expiration of the time for petitioning against it, or, in the case of a statute referred under this Act to a committee of the Privy Council, as soon as may be after the report of the committee thereon, and if either House within four weeks (exclusive of any period of prorogation) after a statute has been laid before it presents an Address praying His Majesty to withhold his approval from a statute or any part thereof no further proceedings shall be taken on the statute or on the part thereof to which the Address relates, but this provision shall be without prejudice to the making of a new statute :

Provided that, if His Majesty, on the report of a committee of the Privy Council, declares his disapproval of any statute, it shall not be necessary to lay that statute before Parliament, and if His Majesty so declares his disapproval of a part only of any statute, that part may be omitted from the statute as laid before Parliament.

5. His Majesty's approval or disapproval of any statute or of any part of a statute made under this Act may be declared by Order in Council, and any such disapproval shall be without prejudice to the making of a new statute.